

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING**

Published Panel Opinion

United States Court of Appeals for the Fourth Circuit

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

No. SYN-CA4-26-CV-4105

Decided July 9, 2026

Before Composite Jurist March, presiding, Composite Jurist Rowan, and Composite Jurist Slate.
Opinion by Composite Jurist March, joined by the panel.

Granite Heron sought pre-verdict judgment on causation only and twice stated that mitigation remained for the jury. After the jury selected a \$300,000 mitigation deduction, Granite Heron obtained renewed judgment imposing a \$1,500,000 deduction. Because Rule 50(b) permits renewal of a specified Rule 50(a) ground rather than substitution of an expressly excluded ground, we reverse the mitigation JMOL.

That conclusion does not resolve the independent Rule 59 ruling. The district court conditionally found the financial verdict against the clear weight of evidence and ordered another trial of gross damages and mitigation if JMOL fell. The court did not abuse its discretion, and those financial issues are separable from liability and causation.

We therefore reverse the mitigation JMOL, affirm the conditional damages new trial, affirm its damages-only scope, vacate the amended judgment, and remand for that retrial. Neither the original \$3,900,000 judgment nor the amended \$2,700,000 judgment becomes an immediately payable final recovery under this disposition.

I. Contract and custody framework

Blue Ember developed the BE-214 biologics program and contracted with Granite Heron for frozen transport of a validation lot. Their integrated writings required specified temperature control, calibrated monitoring, documented transfers, and prompt escalation. Blue Ember retained the quality decision whether a lot remained suitable for its intended validation use. The jury found an enforceable contract and breach; those findings are not challenged here.

During a power transition at Granite Heron's Fletcher facility, the shipment monitor recorded fifty-four minutes above the required threshold and a maximum reading of minus 42.8 degrees. Escalation did not occur within the contractually contemplated period. Blue Ember's quality group concluded that the missing continuous-custody assurance made the lot unsuitable for validation, notwithstanding limited sample activity and intact seals.

The parties disputed the resulting loss. Blue Ember traced the lot value, incremental replacement work, and bounded program delay to the excursion. Granite Heron argued that sample results, alternate uses, ordinary development uncertainty, and cost classifications interrupted or reduced that causal chain. The district court submitted those issues to jurors, who found that Granite Heron's breach caused compensable harm. Our decision leaves that causal finding undisturbed.

II. The post-injury Cobalt Finch option

After rejecting the transported lot for validation, Blue Ember investigated replacement manufacturing. Cobalt Finch identified a possible December 2 campaign using relevant equipment and personnel. Its communications described transfer work, an estimated \$300,000 incremental commitment, and a November readiness gate. Qualification and change control remained incomplete, and no witness guaranteed successful production when Blue Ember declined to secure the slot.

Granite Heron treated the opportunity as mitigation. Its expert, Elodie Park, conditionally used the risk-adjusted delay framework of Blue Ember expert Kellan Brooks. Park estimated that an earlier campaign would avoid \$1,800,000 of gross delay while leaving \$200,000 of disruption. Subtracting the estimated \$300,000 transfer and qualification cost yielded a proposed \$1,500,000 net reduction.

Blue Ember emphasized the short decision period, technical uncertainty, unfinished approvals, and possible duplicated expense. Granite Heron emphasized staged diligence, the option value of holding scarce capacity, and another sponsor's later booking. North Carolina law required Granite Heron, as the party asserting failure to mitigate, to prove unreasonable conduct and the amount of reducible loss. See *Thermal Design, Inc. v. M&M Builders, Inc.*, 207 N.C. App. 79, 88–90, 698 S.E.2d 516, 523–24 (2010); *Clark v. Bichsel*, 239 N.C. App. 13, 17, 767 S.E.2d 145, 148 (2015).

III. The jury's itemized financial findings

The verdict form separated the financial questions from breach and causation. Jurors found \$1,350,000 for the validation lot, \$850,000 for replacement-campaign expense, and \$2,000,000 for bounded delay. Those figures produced \$4,200,000 in gross damages. Jurors then found a failure to mitigate and selected a \$300,000 net deduction, resulting in an October 15, 2025 judgment for \$3,900,000.

The itemization matters for two reasons. First, it confirms that caused gross loss and avoidable loss were tried under distinct questions and burdens. Granite Heron's mitigation defense assumed compensable injury and asked how reasonable later conduct would have changed its financial extent. Second, the itemization permits a coherent partial retrial. Liability and causation were answered before the financial categories, while gross delay and mitigation shared scheduling and expert inputs.

Nothing in the verdict suggests a compromise on whether Granite Heron breached or caused harm. The district judge later found a weight problem in the amount-related answers, not in the operational findings. Neither party asks us to disturb liability. Granite Heron likewise accepts causation if the matter returns for trial. That agreement does not determine preservation, but it confirms the practical boundary of the conditional relief.

IV. Granite Heron's first Rule 50(a) motion

At the close of Blue Ember's evidence on October 10, Granite Heron moved for judgment as a matter of law on causation only. It sought a ruling that the evidence could not support attribution of lot rejection, replacement expense, and delay to the transport excursion. The motion relied on sample activity, the quality decision, cost categorization, and forecasting uncertainty as alleged breaks in the causal chain.

The motion did more than fail to mention mitigation. It stated that Granite Heron did not seek judgment on the affirmative defense. It left Blue Ember's response to Cobalt Finch, the amount of any net deduction, and the likely success of an earlier campaign to the jury under separate instructions. The district court denied the causal motion after hearing Blue Ember's response.

This language supplied no notice that Granite Heron asserted a legal insufficiency in Blue Ember's mitigation response or sought a compulsory \$1,500,000 deduction. Blue Ember was entitled to take the movant at its word. A party may present an affirmative defense for jury decision without asserting that only one result is legally permissible. Rule 50(a)(2) requires the movant, not the opponent or court, to identify the judgment sought and the supporting law and facts.

V. Renewal at the close of all evidence and the verdict

On October 14, Granite Heron renewed the same causation challenge. Its second motion incorporated the earlier ground, added arguments based on the completed defense proof, and again said it did not broaden the request to mitigation. It expressly left the reasonableness of Blue Ember's response and the size of a Cobalt Finch deduction for jurors.

The district court denied the renewed motion because reasonable jurors could connect the excursion to lot disposition, replacement expense, and bounded delay. The court then instructed separately on causation and Granite Heron's affirmative defense. The itemized verdict followed. At no point before deliberations did Granite Heron ask for judgment that the mitigation evidence compelled a particular reduction.

Granite Heron's appellate candor narrows the issue. It agrees that the certified motions contain the limitations just described and relies on no general reservation or alternate text. It argues instead that caused delay and avoidable delay were functionally the same recoverable-amount question because the experts used shared inputs and Blue Ember fully contested the capacity evidence.

That argument identifies real factual overlap. It does not change the legal ground specified before verdict. The question is whether overlap and trial notice can overcome an express decision not to seek mitigation judgment.

VI. Posttrial motion and district disposition

Granite Heron filed a timely combined motion on November 10. For the first time, it asked for JMOL setting the net mitigation deduction at \$1,500,000. It alternatively sought a new trial under Rule 59 because the \$300,000 deduction and related financial answers were allegedly contrary to the clear weight. Blue Ember opposed the two branches on preservation and weight grounds, respectively.

At the posttrial hearing, Granite Heron acknowledged that it had not requested a directed Cobalt Finch reduction before submission. It maintained that avoidable delay refined the same damages boundary. Blue Ember answered that causation and mitigation had different burdens, evidence, and verdict questions, and that the express exclusion eliminated any opportunity to cure an asserted sufficiency gap.

The December 15 order granted JMOL. The court recognized that “causation only” did not include mitigation but treated the complete trial presentation and common financial focus as adequate notice. It amended the judgment to \$2,700,000. Separately, as Rule 50(c)(1) required, it conditionally granted a new financial trial after weighing the capacity and model evidence under Rule 59. It confined that trial to gross damages and mitigation, leaving liability and causation fixed.

VII. Jurisdiction, review standards, and the preservation holding

We have jurisdiction under 28 U.S.C. § 1291. The December 15 order disposed of the timely Rule 50(b) and Rule 59 requests and entered an amended final judgment. Federal Rule of Appellate Procedure 4(a)(4)(A) made the appeal period run from that disposition, and Blue Ember filed its notice January 12, 2026, within Rule 4(a)(1)(A)'s thirty days.

Whether a postverdict ground remained within the Rule 50(a) request is a legal question reviewed without deference. We review the conditional new-trial ruling and its partial scope for abuse of discretion, subject to the requirement that retained and retried issues be distinct and separable without confusion or unfairness. Rule 50(c)(2)'s consequence presents a legal question.

The mitigation JMOL cannot stand. Both Rule 50(a) motions specified causation only, expressly excluded failure to mitigate, and left the Cobalt Finch decision and deduction to jurors. The Rule 50(b) request sought different judgment on a different theory after Granite Heron disliked the number. That is substitution, not renewal.

The distinction is substantive. Blue Ember bore the burden to prove gross loss caused by breach; Granite Heron bore the burden to prove unreasonable post-injury conduct and quantify avoidable loss. Separate instructions and verdict questions reflected that structure. Rule 50(a)(2) protects an opportunity to confront the particular alleged insufficiency while correction remains possible. Blue Ember was told that Granite Heron did not seek to remove mitigation from jurors. Full litigation of the evidence cannot overcome that written limitation.

We hold only that mitigation did not support renewed judgment on this record. Related damages arguments may remain within one properly identified ground, but a movant cannot expressly exclude an issue and later call it renewed.

VIII. *Unitherm*, *Price*, and *Plyler* require continuity

Rule 50's pre-verdict and postverdict stages serve related functions. *Unitherm Food Systems, Inc. v. Swift-Eckrich, Inc.*, 546 U.S. 394, 399–406 (2006), emphasizes that a proper renewed motion permits the trial judge to evaluate the verdict and possible new-trial consequences on a ground first presented before submission. The structure does not allow a party to reserve jury treatment and select judicial resolution after learning the answer.

Our published decision in *Price v. City of Charlotte*, 93 F.3d 1241 (4th Cir. 1996), requires the reason supporting judgment to be raised under Rule 50(a) and reasserted under Rule 50(b). Notice enables the court and opposing party to address the alleged gap before deliberations. Granite Heron's causal reason continued across its first two motions; the mitigation reason began only in the third.

Plyler v. Cox, 145 F.4th 501, 510–11 (4th Cir. 2025), applies that rule to adjacent sufficiency theories. A defendant-specific physical-proximity basis first raised under Rule 50(b) was unavailable, although the general sufficiency issue actually raised under Rule 50(a) remained reviewable. Granite Heron likewise retains its causal sufficiency issue, but not the distinct mitigation basis first asserted after verdict.

Gautier v. Tams Management, Inc., 163 F.4th 786, 793–94 (4th Cir. 2026), declined forfeiture where a Rule 50(b) footnote incorporated the same single-employer sufficiency issue raised before verdict and the district court addressed it. That is not this case: Granite Heron expressly excluded mitigation before verdict. The district court's later treatment of causation and mitigation as recoverable-delay variants cannot convert a distinct omitted ground into the required renewal.

IX. *Wiener* concerns appellate theory after Rule 50(b) preservation

Wiener v. AXA Equitable Life Insurance Co., 153 F.4th 413, 422 (4th Cir. 2025), addressed whether appellate arguments varied impermissibly from a damages-sufficiency issue already raised in Rule 50(b). It allowed slightly different appellate theories supporting that preserved issue. It did not authorize movement from one Rule 50(a) ground to a distinct Rule 50(b) basis.

Here the motions did not incompletely describe mitigation. They said the affirmative defense was not a ground and that reasonableness and amount remained for jurors. Causation and mitigation also carried different burdens and temporal focus. The later fixed deduction was neither a detail nor a refined explanation of the causal motion; it was relief Granite Heron had specifically declined to request.

The unpublished *Boley v. Armor Correctional Health Services, Inc.* majority discussed notice, cure, and fairness and separately considered a fundamental-error concept. That latter discussion is nonprecedential and supplies no controlling exception. The concurrence read *Unitherm* strictly. We need not choose between their broader remedial views because published authority and the unambiguous motion text resolve this appeal.

Our holding respects *Wiener*'s appellate-theory rule and *Plyler*'s earlier renewal boundary. Appellate reasoning may vary while supporting an issue preserved in Rule 50(b); it cannot retroactively supply a distinct ground omitted from Rule 50(a).

X. We reverse without deciding mitigation sufficiency

Because the Rule 50(b) ground was unavailable, we do not decide whether the trial evidence could support only a \$1,500,000 deduction. Cobalt Finch's held slot, relevant equipment, staged diligence, schedule potential, and later booking were substantial evidence. So were Blue Ember's points about incomplete qualification, technical risk, a compressed decision period, and possible duplicated cost.

Those matters belonged to jurors under the pre-verdict posture Granite Heron selected. The district judge later possessed authority to weigh them under Rule 59, but evidentiary strength cannot repair Rule 50 preservation. A new ground does not become renewable because the moving party believes its proof overwhelming after the verdict.

Reversal also does not reinstate the jury's \$300,000 assessment as an unreviewable final answer. Granite Heron preserved and obtained a conditional new-trial ruling based on weight. Our separate review of that ruling follows. This distinction gives effect to both procedural rules: Rule 50 denies judicial substitution on an unraised ground; Rule 59 permits a new jury when a timely, independently supported weight determination survives deferential review.

The first component of our disposition is therefore precise: the mitigation JMOL is reversed.

XI. The conditional damages new trial is affirmed

Granite Heron timely moved under Rule 59 within twenty-eight days of the original judgment. Blue Ember answered that request, the parties argued it, and the district court supplied independent reasons. The court identified the actual held capacity, proposed transfer sequence, staged readiness process, expected schedule benefit, incremental cost, and expert comparison. It also recognized incomplete qualification and uncertainty.

That balanced assessment applied the clear-weight standard rather than the no-reasonable-jury standard. *Atlas Food Systems & Services, Inc. v. Crane National Vendors, Inc.*, 99 F.3d 587 (4th Cir. 1996), recognizes a district court's authority to weigh evidence and order a new trial when the verdict is against the clear weight or would produce injustice. Our review is for abuse of discretion.

Blue Ember persuasively explains why jurors could credit risk. But Rule 59 permits a trial judge to conclude that an otherwise permissible verdict warrants retrial after personally observing the evidence. The order did not shift Granite Heron's burden or dictate the next result. It directed a new jury to reconsider the financial questions.

We find no abuse of discretion. The second component of our disposition affirms the conditional damages new trial.

XII. The damages-only limitation is affirmed

A partial new trial is permissible only when the issue to be retried is distinct and separable from retained issues without injustice or jury confusion. *Atlas Food Systems*, 99 F.3d 587; *Rice v. Community Health Association*, 203 F.3d 283 (4th Cir. 2000). The special verdict and evidentiary presentation satisfy that condition.

The first jury separately found contract liability and that Granite Heron's custody failure caused compensable loss. Monitor records, transport testimony, quality evidence, and the integrated agreements supported those findings. Financial witnesses and exhibits then addressed lot value, replacement expense, bounded delay, alternate capacity, and mitigation. No inconsistent answer or compromise casts doubt on liability or causation.

Gross damages and mitigation, however, must be considered together. Park's avoided-delay model used Brooks's gross-delay baseline, and incremental alternate-production cost affects the net comparison. A mitigation-only trial could bind jurors to contested assumptions. Reopening all financial categories supplies a coherent boundary.

The new jury will be instructed that breach and causal responsibility are fixed, then will determine gross damages and Granite Heron's proven mitigation deduction. That division preserves settled issues and gives both parties a fair financial trial. We therefore affirm the damages-only scope as the third component of our disposition.

XIII. The amended judgment must be vacated and the case remanded

The December 15 amended judgment states \$2,700,000 because the district court replaced the jury's deduction through JMOL. Reversal of that ruling removes the amended amount's legal foundation. The judgment cannot remain while a new financial jury determines a different net award.

Nor does the October 15 judgment become immediately enforceable as the final recovery. Rule 50(c)(2) provides that, when granted JMOL is reversed and the conditional new trial remains valid, the new trial proceeds unless the appellate court orders otherwise. We have affirmed the conditional decision and identify no reason to cancel it.

The appropriate fourth component is therefore to vacate the amended judgment and remand for the damages retrial. The district court will regain authority upon mandate to conduct that proceeding under the settled liability and causation findings. It may manage admissibility, instructions, and trial administration consistently with this opinion, but it may not reopen whether Granite Heron breached or caused compensable harm.

After the new jury determines gross damages and mitigation, the district court will enter a new judgment embodying the resulting net recovery. Our mandate returns the matter for that purpose, not for immediate collection of either prior amount.

XIV. The record supplies an administrable remand boundary

Granite Heron argues that shared financial inputs supported its preservation theory. We reject that theory because the motions expressly excluded mitigation, but the overlap helps define the retrial. A new jury must be free to evaluate the gross delay baseline while deciding how a reasonable Cobalt Finch response would affect it. The jury should likewise consider any relationship among lot value, replacement expense, and alternate-production cost supported by admissible evidence.

The retained issues are different. The new proceeding begins from established breach and causation. Granite Heron may not revive its prior argument that sample activity or ordinary development risk severed the causal chain. Blue Ember need not reprove the Fletcher custody event or validation consequence as contested liability questions. Background evidence may be admitted to make the financial issues intelligible, subject to district-court management, but it cannot turn the limited trial into a merits retrial.

Granite Heron continues to bear the burden to prove a failure to mitigate and the reducible amount. Blue Ember continues to bear the appropriate burden on gross damages. Nothing in our affirmance establishes \$1,500,000, \$300,000, or any other mandatory deduction. Those figures describe the prior proceedings and expert positions, not instructions to the next jury.

XV. Rule 50(c)(2) determines the post-mandate consequence

Rule 50(c)(1) requires a district court granting renewed judgment to conditionally rule on a joined new-trial request and state its grounds. Rule 50(c)(2) then addresses appellate reversal: the new trial proceeds unless the appellate court orders otherwise. The district court followed the first command, and our component-by-component disposition gives effect to the second.

This structure prevents a remedial gap. If we reversed JMOL without addressing the conditional ruling, the parties could dispute whether the original judgment revived. By affirming the ruling and scope, we make clear that a financial retrial follows. By vacating the amended judgment, we remove the fixed deduction that cannot stand. By retaining liability and causation, we preserve the first jury's settled work.

Neither party gains an immediate final award from today's opinion. Blue Ember has prevailed on the Rule 50 preservation issue but must prove gross damages again. Granite Heron has lost the directed \$1,500,000 reduction but may present its mitigation defense again under the correct burden. The eventual district judgment will depend on the retrial verdict.

These consequences follow the rules and the affirmed conditional order; they are not an advisory modification of either party's substantive contract rights.

XVI. Disposition

We resolve the district court's rulings as separate components. First, the mitigation judgment as a matter of law is **reversed** because Granite Heron's causation-only Rule 50(a) motions expressly left mitigation for the jury and did not preserve the postverdict ground. Second, the conditional Rule 59 damages new trial is **affirmed** because the district court independently applied the clear-weight standard without abusing its discretion.

Third, the damages-only scope of that conditional new trial is **affirmed**. Gross damages and mitigation will be retried together; liability and causation remain fixed. Fourth, the December 15, 2025 amended judgment is **vacated**, and the case is **remanded** for the limited financial retrial described in this opinion.

The clerk shall enter judgment contemporaneously. If no timely rehearing petition, stay, or other order changes the ordinary course, mandate will issue under Federal Rule of Appellate Procedure 41 after the Rule 40 petition period and the additional seven-day interval expire. Until mandate returns jurisdiction and the district court enters a new judgment after retrial, neither the October 15 \$3,900,000 judgment nor the December 15 \$2,700,000 amended judgment constitutes the immediately payable final recovery.

REVERSED IN PART, AFFIRMED IN PART, VACATED, AND REMANDED.